

Mintu Mirdha vs State (Govt. Of Nct Of Delhi) on 17 December, 2020

Author: Vibhu Bakhru

Bench: Vibhu Bakhru

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* IN THE HIGH COURT OF DELHI AT NEW DELHI

+ BAIL APPLN. 1797/2020

MINTU MIRDHA

Through: Mr Vijay Kinger, Advocate

versus

STATE (GOVT. OF NCT OF DELHI)

..... Respondent

Through: Ms Kusum Dhalla, APP for State.

Ms Richa Dhawan, Advocate
(DHCLSC) for prosecutrix.

CORAM:

HON'BLE MR. JUSTICE VIBHU BAKHRU
ORDER

% 17.12.2020 [Hearing held through videoconferencing]

1. The applicant has filed the present application seeking bail in FIR No. 97/2017 under Sections 363/366/366A/370A/406/120B of the IPC read with Sections 6 and 17 of the Protection of Children from Sexual Offences Act, 2012 (POCSO Act).
2. The said FIR was initially registered under Section 363 of the IPC at the instance of the father of one of the victims. He had stated that his daughter, who was aged about fourteen years at the material time, was missing and he apprehended that she had been abducted by some unknown person(s).
3. Subsequently, after a few months, he once again came to the police station and informed the officials that a call was received from his daughter. He gave the mobile number from which the call was received and the same was traced. His daughter (one of the victims) was found living with one Neeraj at his residence. The said victim's statement was recorded under section 164 Cr.P.C.
4. In her examination-in-chief, she stated that she had left her parental home on her own on 02.03.2017 and had gone to Anand Vihar Railway Station. At the station she met one Raj (identified as the applicant herein). She claimed that he had taken her to the house of his brother (Anuj). He stated that Raj's brother and his wife (Anuj and Neha) took her into their house. She claimed that

Raj had taken away all her jewellery, which she had carried while leaving home. She stated that there were several girls in the said premises, however, Anuj and Neha did not allow her to speak to them. She stated that they had kept her for one and a half months and thereafter, got her marriage to Neeraj as per Hindu Rites. She alleged that Neeraj had paid a sum of 4 lacs to Anuj and Neha for his marriage.

5. Mr Kinger, learned counsel appearing for the applicant states that no serious allegation was made by the applicant recorded in her statement under section 164 Cr.P.C and the allegations were made by the victim subsequently in her examination-in-chief. Further, there are material inconsistencies in the statement of the victim recorded under Section 164 of the Cr.PC and her examination-in-chief. He also seeks parity with other co-accused who have been released on bail.

6. The contentions advanced by Mr Kinger are unpersuasive. First of all, there are two victims in this case and their statements recorded under Section 164 Cr.PC clearly indicate that there are serious allegations against the applicant. Both the victims had alleged that the applicant had raped them. Thus, the contention that the allegations against the applicant are not serious is plainly, unmerited.

7. Both the victims had been alleged that they were at the railway station and had been lured by the applicant who had taken them to the house of his brother and his wife (Anuj and Neha). Prima facie, this does indicate his modus operandi.

8. The contention that the applicant ought to be treated at parity with the other co-accused who have been released on bail is also unpersuasive. The allegations against one of the accused, who has been released on bail, is that the applicant had given the jewellery of the victims to that accused who had helped him to monetize the same. Accused Neeraj has been released on bail as there did not appear to be any allegation that he was engaged in any trafficking. Further the victim in that case had also stated that she had married Neeraj and their relationship was consensual. She had also stated that he had treated her well and had taken care of her.

9. The allegations against the applicant are materially different. Allegations against him are clearly, more serious than the other co-accused who have been released on bail.

10. Ms Dhalla, learned APP appearing for State submits that the trial is at a crucial stage and while, the examination-in-chief of the victim is complete, her cross-examination is yet to be completed.

11. Considering the gravity of the offence as well as the stage of the current trial, this Court does not consider it apposite to accede to the prayer made in the present petition.

12. The application is, accordingly, dismissed.

13. It is clarified that the observations made herein are only for the purposes of examining this application and should not be construed as an expression of opinion on the merits of the allegations made against the applicant. Trial Court shall proceed with the matter uninfluenced by any observations made herein.

VIBHU BAKHRU, J DECEMBER 17, 2020 RK